

ARTICLES OF INCORPORATION



State of California
Secretary of State

I, BRUCE McPHERSON, Secretary of State of the State of California, hereby certify:

That the attached transcript of 7 page(s) was prepared by and in this office from the record on file, of which it purports to be a copy, and that it is full, true and correct.



IN WITNESS WHEREOF, I execute this
certificate and affix the Great Seal of the
State of California this day of

MAY 02 2005

A handwritten signature in cursive script, appearing to read "Bruce McPherson".

BRUCE McPHERSON
Secretary of State.

666634

FILED

In the office of the Secretary of State
of the State of California

OCT 5 1972

ARTICLES OF INCORPORATION
OF
OAKTREE PARK CABANA CLUB

COMMUNO J. BROWN Jr., Secretary of State
Ralph B. Maritz
Deputy

ARTICLE I

The name of the corporation (hereinafter called the "Association") is OAKTREE PARK CABANA CLUB.

ARTICLE II

The principal office for the transaction of the business of the Association is located in Santa Clara County, State of California.

ARTICLE III

This Association is organized pursuant to the General Nonprofit Corporation Law.

ARTICLE IV

PURPOSE AND POWERS OF THE ASSOCIATION

This Association does not contemplate pecuniary gain or profit to the members thereof, and the specific primary purposes for which it is formed are to provide for swimming facilities for its members and to erect, construct, purchase, own, improve, maintain, repair and operate swimming and wading pools, and recreational facilities, buildings, areas, and paraphernalia of every kind and nature whatsoever, for the purpose of promoting recreational and social intercourse among its members and to furnish pleasure, happiness and health to its members.

In furtherance of said purposes, this Association shall have power to:

- (a) Perform all of the duties and obligations

Restriction of right
to amend articles
Yes

of the Association as set forth in that certain Declaration of Covenants, Conditions and Restrictions, hereinafter called the "Declaration", applicable to the Association and recorded or to be recorded in the Office of the Recorder of the County of Santa Clara, State of California, relating to Unit No. 1 (Tract No. 5052) of the Subdivision in the City of San Jose, County of Santa Clara, known as Oaktree Park (and to such additional units or portions of said Oaktree Park as may hereafter be annexed as provided in said Declaration), and under and by virtue of which Lots in said Unit (or Units) are subject by covenants of record to assessment by this Association;

(b) Fix, levy, collect and enforce payment by any lawful means, all charges or assessments pursuant to the terms of the Declaration; to pay all expenses in connection therewith and all office and other expenses incident to the conduct of the business of the Association, including all licenses, taxes or governmental charges levied or imposed against the property of the association;

(c) Acquire (by gift, purchase or otherwise), own, hold, improve, build upon, operate, maintain, convey, sell, lease, transfer, dedicate for public use or otherwise dispose of real or personal property in connection with the affairs of the Association;

(d) Borrow money, but only with the assent (by vote or written consent) of two-thirds (2/3) of each class of members, mortgage, pledge, deed in trust, or hypothecate any or all of its real or personal property as security for money borrowed or debts incurred;

(e) Dedicate, sell or transfer all of or any part of the Common Area (as defined in said "Declaration") to

any public agency, authority, or utility for such purposes and subject to such conditions as may be agreed to by the members. No such dedication or transfer shall be effective unless an instrument has been signed by two-thirds (2/3) of each class of members, agreeing to such dedication, sale or transfer;

(f) Participate in mergers and consolidations with other nonprofit corporations organized for the same purposes or annex additional residential property and Common Area, provided that any merger, consolidation or such annexation, except as provided in the Declaration, shall have the assent by vote of two-thirds (2/3) of each class of members;

(g) Have and to exercise any and all powers, rights and privileges which a corporation organized under the General Nonprofit Corporation Law of the State of California by law may now or hereafter have or exercise; provided, however, that this corporation is not empowered to engage in any activity which in itself is not in furtherance of its purposes as set forth above, and provided further that this Association is organized and operated exclusively for pleasure, health and recreation, and other nonprofitable purposes, and no part of any net earnings shall inure to the benefit of any private member.

ARTICLE V

MEMBERSHIP

Every person or entity who is a record owner of a fee or undivided fee interest in any Lot which is subject by covenants of record to assessment by the Association, including contract sellers, shall be a member of the Association. The foregoing is not intended to include persons or entities who hold an interest merely as security for the

performance of an obligation. Membership shall be appurtenant to and may not be separated from ownership of any Lot which is subject by covenants of record to assessment by the Association.

ARTICLE VI

VOTING RIGHTS

The Association shall have two classes of voting membership:

Class A. Class A members shall be all Owners (as defined in the Declaration) with the exception of the Declarant and shall be entitled to one vote for each Lot owned. When more than one person holds an interest in any Lot, all such persons shall be members. The vote for such Lot shall be exercised as they among themselves determine, but in no event shall more than one vote be cast with respect to any Lot.

Class B. The Class B member(s) shall be the Declarant (as defined in the Declaration), and shall be entitled to three (3) votes for each Lot owned. The Class B memberships shall cease and be converted to Class A membership on the happening of any of the following events, whichever occurs earliest:

- (a) When the total votes outstanding in the Class A membership equal the total votes outstanding in the Class B membership; or
- (b) Two years from the date of the issuance of the most recent Public Report for a phase of the overall development; or
- (c) On December 31, 1975.

ARTICLE VII

BOARD OF DIRECTORS

The affairs of this Association shall be managed

by a Board of nine (9) Directors, who need not be members of the Association. The number of directors may be changed by amendment of the By-Laws of the Association. The names and addresses of the persons who are to act in the capacity of directors until the selection of their successors are:

ROBERT L. CRANE	2295 De La Cruz Boulevard Santa Clara, California
EDWARD E. KAITZ	2295 De La Cruz Boulevard Santa Clara, California
RICHARD E. POTTS	2295 De La Cruz Boulevard Santa Clara, California
CHARLES A. DISCOE	2295 De La Cruz Boulevard Santa Clara, California
WALTER W. WHITE	2295 De La Cruz Boulevard Santa Clara, California
E. BLAINE HARPER, JR.	2295 De La Cruz Boulevard Santa Clara, California
BRUCE D. WALLACE	2295 De La Cruz Boulevard Santa Clara, California
GERALD C. JOHNSON	2295 De La Cruz Boulevard Santa Clara, California
JOHN H. THOMPSON	2295 De La Cruz Boulevard Santa Clara, California

At the first annual meeting, the members shall elect three (3) directors for a term of one (1) year, three (3) directors for a term of two (2) years and three (3) directors for a term of three (3) years.

ARTICLE VIII

DISSOLUTION

Upon dissolution of the Association, the assets of the Association shall be distributed to an appropriate public agency to be used for purposes similar to those for which this Association was created. In the event that such distribution

is refused acceptance, such assets shall be granted, conveyed and assigned to any nonprofit corporation, association, trust or other organization organized and operated for such similar purposes.

ARTICLE IX

DURATION

The corporation shall exist perpetually.

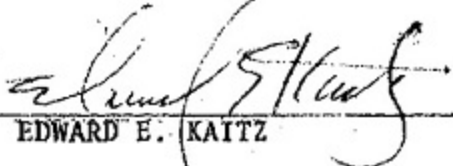
ARTICLE X

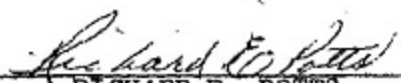
AMENDMENTS

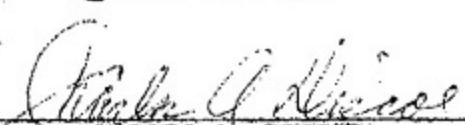
Amendment of these Articles shall require the assent (by vote or written consent) of members representing seventy-five per cent (75%) or more of the voting power.

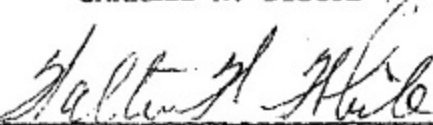
IN WITNESS WHEREOF, for the purpose of forming this corporation under the laws of the State of California, we, the undersigned, constituting the incorporators of this Association, have executed these Articles of Incorporation this 4th day of October, 1972.


ROBERT L. CRANE


EDWARD E. KAITZ

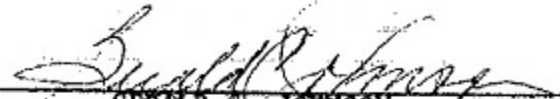

RICHARD E. POTTS


CHARLES A. DISCOE


WALTER W. WHITE


E. BLAINE HARPER, JR.


BRUCE D. WALLACE


GERALD C. JOHNSON

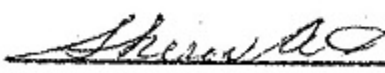

JOHN H. THOMPSON

STATE OF CALIFORNIA)
COUNTY OF SANTA CLARA) ss

On this 4th day of October, 1972,
before me, Sheron A. Garcia, a Notary Public
in and for the County of Santa Clara, State of California,
residing therein, duly commissioned and sworn, personally
appeared ROBERT L. CRANE, EDWARD E. KAITZ, RICHARD E. POTTS,
CHARLES A. DISCOE, WALTER W. WHITE, E. BLAINE HARPER, JR.,
BRUCE D. WALLACE, GERALD C. JOHNSON, and JOHN H. THOMPSON,
known to me to be the persons whose names are subscribed
to the foregoing Articles of Incorporation of OAKTREE PARK
CABANA CLUB, and acknowledged to me that they executed the
same.

WITNESS my hand and official seal.




Notary Public in and for the
County of Santa Clara,
State of California.

